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Sens. Hoffner, Wilson; Reps. Heffernan, Neal

DELAWARE STATE SENATE  
153rd GENERAL ASSEMBLY

SENATE BILL NO. 110

AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO THE EXAMINING BOARD OF  
PHYSICAL THERAPISTS AND ATHLETIC TRAINERS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1           Section 1. Amend § 2607, Title 24 of the Delaware Code by making deletions as shown by strikethrough and  
2     insertions as shown by underline as follows:

3           § 2607. Issuance and renewal of licenses; inactive ~~status; misrepresentation.~~ status.

4           ~~(b) Each application for license under this chapter shall be accompanied by a fee set forth in the Board's rules and~~  
5     ~~regulations. Licenses shall expire biennially on January 1 and may be renewed online upon payment of a renewal fee along~~  
6     ~~with evidence of continuing education courses as may be required by the rules and regulations set forth by the Board. If the~~  
7     ~~renewal fee is not paid by the expiration date, a license shall automatically expire. A license which has thus expired may,~~  
8     ~~within 5 years of its expiration date, be renewed upon the payment to the Board of the sum set forth in rules and regulations~~  
9     ~~of the Board for each year or part thereof during which the license was expired. Reactivation of an expired license more~~  
10    ~~than 5 years after its expiration date may be renewed only by complying with the provisions herein relating to the issuance~~  
11    ~~of an original license.~~

12          ~~(c) The Board shall also keep an inactive register. Any person who has been registered in this State who is not~~  
13    ~~actively engaged in the practice of physical therapy or athletic training in this State may, upon request, be placed on the~~  
14    ~~inactive register. Provisions for inactive status shall be set by the Board.~~

15          ~~(d) Any applicant who knowingly or wilfully makes a false statement of fact in making an application under this~~  
16    ~~chapter shall be subject to prosecution for perjury.~~

17          (b) Each license must be renewed biennially, in such manner as is determined by the Division, and upon payment  
18    of the appropriate fee and attestation, as set forth in the Board's rules and regulations, that the licensee has met the  
19    continuing education requirements established by the Board.

20          (c) The Board, in its rules and regulations, shall determine the period of time, not to exceed 1 year, within which a  
21    licensee may still renew the licensee's license, notwithstanding the fact that such licensee has failed to renew on or before  
22    the renewal date.

23           (d) A licensee may be placed in an inactive status for no more than 5 years. Such person, who desires to reactivate  
24   that person's license, must submit a request for reactivation and a fee set by the Division, and submit proof of fulfillment of  
25   continuing education requirements in accordance with the rules and regulations of the Board.

26           Section 2. Amend § 2612, Title 24 of the Delaware Code by making deletions as shown by strikethrough and  
27   insertions as shown by underline as follows:

28           § 2612. Practice, referral, and consultation.

29           (a) A licensed physical therapist may enter a case for the purpose of consultation, evaluation or treatment of an  
30   individual as it relates to the individual's need for physical therapy services, with or without a referral by a licensed medical  
31   or osteopathic physician; provided, however, that a physical therapist shall refer the individual to another health practitioner  
32   if symptoms are present for which treatment is outside the scope of the physical therapist's knowledge. A physical therapist  
33   may treat an individual without a referral up to ~~30~~ 90 days after which time a physician must be consulted. Physical therapy  
34   treatment of any individual shall be administered only by a licensed physical therapist. This chapter shall not prohibit  
35   physicians licensed to practice medicine and surgery, chiropractic physicians, podiatrists, dentists and nurses licensed under  
36   this title from performing any physical or therapeutic modalities within the scope of their respective practices. Treatment by  
37   a physical therapist may also occur based on a referral from, or in consultation with, any licensed health practitioner, who  
38   has been granted prescriptive authority for a condition within the scope of their respective practices.

#### SYNOPSIS

The purpose of this Act is to expand patient access to physical therapy services. Currently, a physical therapist may treat an individual without a referral up to 30 days after which time a physician must be consulted. The amendment extends that deadline to 90 days with the objective of ensuring continuity of care. Physical therapists will still be required to practice within their scope of training and expertise. This Act also clarifies the requirements for renewal and reactivation of licenses to ensure consistency with other Title 24 boards and the processes used by the Division of Professional Regulation.

Author: Senator Poore